

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MONIKA MASTALEREK,

Petitioner

VS.

DANIEL LOBERT,

Respondent

) Case Number: FDI-23-798868

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

OTHER REVIEW HEARING; REQUEST FOR ORDER: CHILD SUPPORT, PROPERTY CONTROL,
PAYMENT OF RENT AND HOUSEHOLD EXPENSES

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Monika Mastalerek (Mother) and Respondent Daniel Lobert (Father). They share one minor child: Matthew (DOB: 11/27/18).
- 2) Per the Petition of Dissolution filed by Father 11/7/23, the parties married on 5/10/28 and separated on 10/30/23 for a marriage of 5 years and 5 months. Per the Response and Request for Dissolution filed 2/25/25, Mother agrees the parties married on 5/10/28 and separated on 10/30/23 for a marriage of 5 years and 5 months.
- 3) On 1/31/25, Mother filed an amended Petition for Dissolution indicating the parties separated on 1/31/25 for a marriage of 6 years and 8 months. On 2/25/25, Father filed a Response and Request for Dissolution indicating the parties married on 5/10/28 and separated on 10/30/23 for a marriage of 5 years and 5 months.

- 1 4) On 12/4/25, the Court modified the initial 7/15/25 support order and ordered Father to pay
2 Mother \$2,036 per month in temporary monthly spousal support and \$1,314 in guideline monthly
3 child support. The Court also ordered Father to continue to share equally the monthly rent
4 obligation so long as both parties continue to reside in the residence, issued orders regarding child
5 support add-on expenses, and maintained its prior work search order for Mother. See Findings
6 and Order After Hearing (FOAH) filed 12/24/25.
- 7 5) On 2/4/26, the Court issued a Restraining Order After Hearing (ROAH) that expires 2/4/29
8 wherein Mother is the protected party, and Father is the restrained party. Father was ordered to
9 move out of the residence.
- 10 6) On 4/26/26, the Court ordered Father to have unsupervised parenting time with the minor child
11 every other week on Saturdays and Sundays from 10 am to 6 pm plus Thursday and Friday
12 evenings from pick-up after school to 8 pm on opposite weeks. See FOAH filed 5/5/26. A review
13 hearing on child custody and visitation was set for 7/23/26.
- 14 7) On 4/24/26, the Court denied Mother's request for emergency relief pending hearing set on
15 6/23/26. Mother sought orders requiring Father to: (a) pay his portion of the rent directly to the
16 landlord (and/or not deduct it from Mother's support payment unless the rent has been paid); (b)
17 continue paying support as ordered; (c) continue contributing to Mother's household expenses;
18 and (d) register and use Our Family Wizard (OFW) for communications regarding the minor
19 child.
- 20 8) On 6/12/26, Mother filed a Supplemental Declaration asserting that Father resumed paying his
21 share of her rent after being served with the ex parte Request for Order. Mother states that the
22 financial issues were temporarily resolved, but the communication issue remains ongoing. Mother
23 reiterates her request to use OFW for communications regarding the minor child.
- 24 9) On 6/17/26, Father filed a Supplemental Declaration refuting Mother's position. Father reasserts
25 that the Court should deny Mother's request for OFW. Father states the restraining order includes
26 a provision for brief, peaceful communication about the court-ordered visits only.
- 27 10) On 6/23/26, the Court continued the hearing to 7/21/26.
- 28 11) On 7/13/26, Mother filed a supplemental declaration and updated Income and Expense
29 Declaration. Mother attached a seek work log.

1 12) On 7/15/26, Father requested a continuance of the 7/21/26 hearing due to his medical condition
2 and submitted a doctor's letter stating that he is available for a hearing in August. Mother
3 objected to the continuance, in part, because of her request to travel to Poland prior to the start of
4 the school year. However, the Court continued the 7/21/26 hearing to 7/23/26 on the Court's own
5 motion.

6 13) On 7/20/26, Father filed a supplemental declaration asserting inaccuracies in Mother's
7 representation of her current financial situation and incomplete seek work efforts.

8 14) At the prior 7/23/26 hearing, the Court, in pertinent part:

- 9 a. Granted Father's request for a continuance of both the review hearing and Mother's
10 Request for Order filed April 24, 2026, for good cause shown to 8/27/26.
- 11 b. Granted Mother's request to travel to Poland with Matthew Lobert (DOB 11/27/18) prior
12 to the start of the school year and ordered Mother to provide Father with her itinerary for
13 airplane travel and accommodations and make Matthew available for telephone contact
14 (including Facetime©) on at least three occasions while overseas.
- 15 c. Ordered each party to file and serve current Income & Expense Declarations and
16 Statements of Support Calculations with a proposed XSpouse printout as required by the
17 SF Local Rules no later than 5 Court days prior to the next hearing.
- 18 d. Ordered the parties to exchange all documents required by Local Court Rule 11.7 A.2d.
19 no later than 5 court days prior to the next hearing.
- 20 e. Reserved jurisdiction over all outstanding issues, including spousal support and child
21 support.

22 15) On 08/20/26, Mother filed an updated Income and Expense Declaration.

23 16) On 08/20/26, Father filed an updated Income and Expense Declaration.

24 17) On 8/24/26, Mother filed a supplemental declaration.

25 18) On 8/25/26, Father filed a supplemental declaration.

26 **B. Findings and Order**

- 27 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
28 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
29

violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) **The parties are ordered to appear.**